

Amendment No. 1 to SB0303

White
Signature of Sponsor

AMEND Senate Bill No. 303

House Bill No. 47*

by deleting all language after the caption and substituting:

WHEREAS, the United States regularly has acknowledged the role that fundamental religious documents and principles have in American heritage law; and

WHEREAS, one of the most recognized sets of foundational principles were the Ten Commandments, which were displayed in public buildings across the United States, including in schools, government buildings, and courthouses; and

WHEREAS, for the last several decades, expression of that heritage has been restricted; and

WHEREAS, the *Lemon* test was the culmination of separationists' fight to eradicate all references to religion from the public sphere; and

WHEREAS, litigants like the American Humanist Association, American Atheists, the Freedom From Religion Foundation, and The Satanic Temple used the *Lemon* test to block as many displays of America's religious heritage as they could, including the Ten Commandments displays and veterans' memorials; and

WHEREAS, one of the largest upheavals was in *Stone v. Graham* in 1980, where the Supreme Court used the *Lemon* test to strike down Kentucky's law requiring that the Ten Commandments be displayed in public schools; and

WHEREAS, prior to *Stone v. Graham*, many public schools displayed the Ten Commandments, and after *Stone v. Graham*, public schools across the country almost universally removed the Ten Commandments displays; and

WHEREAS, now, however, the legal landscape has changed due to *Kennedy v. Bremerton School District*, as the Supreme Court overturned *Lemon*, which eliminated the *Lemon* test and instead looks to United States' history and tradition for whether the government may recognize our religious heritage; and

WHEREAS, unfortunately, after over fifty years of *Lemon*'s rule, the traditional recognitions of our religious heritage are very slow to return; and

WHEREAS, many government officials are afraid of the ghost of *Lemon*, continuing to eliminate any trace of religion from their purview because of years of being told that such displays are impermissible; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 20, is amended by adding the following as a new section:

(a) Each local board of education and governing body of a public charter school, as defined in § 49-13-104, shall require all schools in the LEA and the public charter school to display the Ten Commandments, the first sentence of the second paragraph of the preamble to the Declaration of Independence, and the preamble to the United States Constitution in a prominent location in each school building in order to educate students on the significance of the Ten Commandments to the principles and ideals of the United States of America, as established in its founding documents.

(b) The text of the Ten Commandments displayed pursuant to subsection (a) must be the following text or a text that was created at the founding of the United States:

"The Ten Commandments

I AM the LORD thy God.

Thou shalt have no other gods before me.

Thou shalt not make to thyself any graven images.

Thou shalt not take the Name of the Lord thy God in vain.

Remember the Sabbath day, to keep it holy.

Honor thy father and thy mother, that thy days may be long upon the land which the Lord
thy God giveth thee.
Thou shalt not kill.
Thou shalt not commit adultery.
Thou shalt not steal.
Thou shalt not bear false witness against thy neighbor.
Thou shalt not covet thy neighbor's house.
Thou shalt not covet thy neighbor's wife, nor his manservant, nor his maidservant, nor
his cattle, nor anything that is thy neighbor's."

(c) Fraternal and other organizations or individuals are encouraged to donate the funds or materials necessary for the display required in subsection (a).

(d) Each local board of education and governing body of a public charter school shall determine the size and placement of the display required in subsection (a); provided, that the items described in subsection (a) must be displayed together, prominently, with text displayed in a font size no smaller than least twenty-six (26) point and in a style and manner that is easy for students to see and read.

(e) As used in subsection (a), "prominent location" means a school entryway, cafeteria, or common area where students are likely to see the display.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 school year and each school year thereafter.